

HOUSE No. 5299

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 26, 2026.

The committee on Children, Families and Persons with Disabilities, to whom was referred the petition (accompanied by bill, House, No. 279) of James J. O'Day, Michael D. Brady and Daniel Cahill relative to social work licensure and establishing a special commission (including members of the General Court) relative to the creation of a new certification for child welfare workers at the Department of Children and Families, reports recommending that the accompanying bill (House, No. 5299) ought to pass.

For the committee,

JAY D. LIVINGSTONE.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure parity in social work licensure.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 112, as appearing in the 2018 Official Edition, is hereby amended by inserting
2 after section 132 the following new section:-

3 Section 132A: (a) A provisional Licensed Social Work Associate license shall be granted
4 to those applicants who have taken the Associates examination for a Licensed Social Work
5 Associate license no less than two times and failed within 10 points. The provisional Licensed
6 Social Work Associate license shall be valid for a maximum of one year. The Licensed Social
7 Work Associate licensee shall complete professional development, supervisory and educational
8 requirements within no less than one year. Upon completion of the provisional license
9 requirements, the licensee shall be exempt from the Associates exam testing requirement within
10 section 132 and granted a full license.

11 (b) A Licensed Social Work Associate licensee operating with a provisional license shall
12 maintain a professional portfolio that shall include items the following:

- i. Affidavits of understanding regarding the provisional licensing process and requirements;
- ii. Eleven separate 3-5 page typed, double spaced papers, each one covering a separate, specific core content area of social work practice;
- iii. A daily journal of the probationary licensee's activities and supervision for the probationary period;
- iv. A 7-10 page typed, double spaced case analysis covering the probationary licensee's work with a typical client during the probationary period;
- v. A 3-5 page typed, double spaced self-evaluation completed by the probationary licensee which includes an analysis of the licensee's professional knowledge, skills and abilities;
- vi. Quarterly evaluations completed and submitted to the board by the supervisor regarding the probationary licensee's development;
- vii. An evaluation of the supervisor's supervision skills completed by the probationary licensee;
- viii. A notarized affidavit from the supervisor attesting to the readiness of the probationary licensee's ability to perform as a professional social worker based on the knowledge, skills and abilities observed during the supervision period.
- (c) Licensees whose caseloads require proficiency in a language other than English must be allowed to submit items ii, iii, iv, v, and vii in the secondary language that they use for daily work.

33 (d) Any information that the Licensed Social Work Associate licensee is required to
34 document pursuant to the requirements in subsection (b) shall be maintained as personnel
35 records, the disclosure of which will constitute an unwarranted invasion of personal privacy and
36 are exempt

37 from public records law.